

SECTION 9—HANDLING

9.0 General

9.0.1 This Section details the responsibilities of operators with regard to the acceptance, handling and loading of dangerous goods. However, nothing contained herein should be interpreted as requiring an operator to transport a particular article or substance or as preventing an operator from imposing special requirements on the transport of a particular article or substance.

9.0.2 Nothing in this Section is intended to preclude a ground handling agent from carrying out some or all of the functions at the direction of an operator. However, such ground handling agents are subject to the Operator Responsibilities of Sections 1 and 9.

Notes:

1. Annex 19 includes safety management provisions for air operators. Further guidance is contained in the ICAO Safety Management Manual (SMM) (Doc 9859).
2. The carriage of dangerous goods is included in the scope of the operator's safety management system (SMS).

9.1 Acceptance

9.1.1 Cargo Acceptance Procedures

STATE VARIATIONS: AEG-06, AWG-01, BRG-04/09, CNG-01, ETG-01, HKG-01, HRG-03/05, IDG-01/02, ING-02/03, MOG-01, MYG-01, NLG-03/06, NPG-01, RSG-02, SAG-02, SGG-01, USG-10/13, VCG-01, VEG-01/07

OPERATOR VARIATIONS: 5X-01, 6O-01, AR-10, AY-01/03, B6-02, BZ-01, CI-01, D0-01, D5-01/04, ES-01/05, ET-01, FZ-03, G3-01, GA-01, GF-05/09/10, GK-01, HM-05, JU-01/02/03/04, KC-02, KE-02, KL-01/02/03, KZ-01, LA-01, MD-02, ME-03, MH-01/17, MK-03/06, MP-02/03, MS-02, NH-01/06, O3-02, OK-03, OM-01, OU-01, QY-01, PG-01, RJ-01, RO-02/04, S7-01, SN-10, SQ-05/09, SX-01, TK-04, TR-04, UL-06, UU-04/07, VN-01, WN-01, WY-01/05/10, XK-03

9.1.1.1 Operators' acceptance staff must be adequately trained to assist them to identify and detect dangerous goods present as general cargo. Information about:

- (a) general descriptions that are often used for items in cargo which may contain dangerous goods; and
- (b) other indication that dangerous goods may be present (e.g. labels, marks), must be provided to cargo acceptance staff and must be readily available to such staff.

9.1.1.2 Cargo Acceptance staff should seek confirmation from shippers about the contents of any item of cargo where there are suspicions that it may contain

dangerous goods, with the aim of preventing undeclared dangerous goods from being loaded on an aircraft as general cargo. Many ordinary looking items may contain dangerous goods and a list of some general descriptions which, experience has shown, are often applied to such items is found in Subsection 2.2.

Notes:

1. Often general names are used in the description of the content of a cargo shipment. To assist in the detection of undeclared dangerous goods, acceptance staff should check shipping documents with the general description stated on the air waybill and if necessary, request documentary evidence from shippers that the shipment does not contain dangerous goods as indicated in Subsection 2.2.
2. Diamond-shaped GHS pictograms on packages may indicate the presence of dangerous goods. While some pictograms identify substances that only pose a hazard for supply and use, other GHS pictograms contain symbols that are largely equivalent to the symbols contained in the hazard labels used in transport and which may therefore be classified as dangerous goods. For more information, see Appendix B, Table B.4.A and http://www.unece.org/trans/danger/publi/ghs/ghs_welcome_e.html.

9.1.2 Acceptance of Dangerous Goods by Operators

9.1.2.1 An operator must not accept a package or overpack containing dangerous goods or a unit load device containing dangerous goods as described in 9.1.4 nor a freight container containing radioactive material for transport aboard an aircraft unless:

- (a) it is accompanied by two copies of the "Shipper's Declaration for Dangerous Goods"; or
- (b) the information applicable to the consignment is provided in electronic form; or
- (c) it is accompanied, where permitted, by alternative documentation.

9.1.2.2 Where a Shipper's Declaration is provided in accordance with 9.1.2.1(a), one copy of the declaration form must accompany the consignment to final destination and one copy must be retained by the operator at a location on the ground where it will be possible to obtain access to it within a reasonable period; the declaration form must be retained at this point until the goods have arrived at final destination, after which time it may be stored elsewhere.

9.1.2.3 When the information applicable to the consignment is provided in electronic form, the information must be available to the operator at all times during the transport to final destination. The data must be able to be produced as a paper document without delay. When a

paper document is produced, the data must be presented as required by Section 8.

9.1.3 Acceptance Checklist

9.1.3.1 Before a consignment consisting of a package or overpack containing dangerous goods, a freight container containing radioactive material or a unit load device containing dangerous goods as described in 9.1.4 is first accepted for carriage by air, the operator must, by use of a checklist, verify the following:

- (a) the documentation complies with the detailed requirements of Subsection 10.8 for radioactive material and Section 8 for other dangerous goods;
- (b) the quantity of dangerous goods stated on the Shipper's Declaration is within the limits per package on a passenger or cargo aircraft as appropriate;
- (c) the marks on package(s), overpack(s) or freight container(s) accord with the details stated on the accompanying Shipper's Declaration and are clearly visible;
- (d) where required, the letter in the packaging specification mark designating the packing group for which the design type has been successfully tested is appropriate for the dangerous goods contained within. This does not apply to overpacks where the specification marks are not visible;
- (e) proper shipping names, UN numbers, labels and special handling instructions appearing on the interior package(s) are clearly visible or reproduced on the outside of an overpack;
- (f) the labelling of the package(s), overpack(s) or freight container(s) is as required by 10.7.2 for radioactive material and 7.2 for other dangerous goods;
- (g) the outer packaging of a combination packaging or the single packaging is permitted by the applicable packing instruction and when visible is of the type stated on the accompanying Shipper's Declaration;
- (h) the package or overpack does not contain different dangerous goods which require segregation according to Table 9.3.A;
- (i) the package, overpack, freight container or unit load device is not leaking and there is no indication that its integrity has been compromised;

Notes:

1. *When an operator accepts a unit load device containing consumer commodities, dry ice or*

magnetized material as permitted by 9.1.4.1(b), (c) or (d), the acceptance checklist requirements of 9.1.3 (c), (e) or (g) are not required.

2. *Where packages are contained in an overpack or freight container, as permitted by 9.1.4, the checklist should establish the correct marking and labelling of such overpacks or freight containers and not the individual packages contained in them.*
3. *Sample checklists for non-radioactive material, radioactive material and dry ice shipments are included at the back of the Regulations.*
4. *Minor discrepancies, such as the omission of dots and commas in the proper shipping name appearing on the Shipper's Declaration for Dangerous Goods or on package marks or minor variations in hazard labels which do not affect the obvious meaning of the label are not considered as errors if they do not compromise safety and should not be considered a reason for rejecting a consignment.*
5. *Although the acceptance check required in 9.1.3 is only required to be conducted when a consignment of dangerous goods is first accepted for carriage by air, the operator of any subsequent aircraft used as part of the same journey should verify that packages, overpacks, freight containers or unit load devices continue to meet the requirements of these Regulations in respect of marking, labelling and inspection for damage.*
6. *Where a dangerous goods consignment fails the acceptance check due to an error or omission by the shipper in packaging, labelling, marking or documentation, it is recommended that the operator retain on file for a minimum period of three months a copy of the Shipper's Declaration and the acceptance checklist.*

9.1.3.2 The operator must be able to identify the person who performed the acceptance check.

9.1.3.3 Certain items of dangerous goods are not required to follow the complete acceptance procedures listed in 9.1.3.1. Table 9.1.A serves as guidance to operator personnel on which provisions apply to certain items of dangerous goods.

TABLE 9.1.A
Applicable Acceptance Procedures Summary (9.1.3.3)

Lithium Battery Mark (7.1.5.5)							
Statement on the air waybill, when air waybill used (8.2.3, 8.2.5 or applicable PI)							
Provision of information to pilot-in-command (NOTOC) (9.5.1.1)							
Identification of Unit Load Device - ULD (9.3.8)							
IATA Shipper's Declaration for Dangerous Goods (8.1)							
Formal Acceptance and Acceptance Checklist (9.1.2 & 9.1.3)							
UN No	Proper shipping name and/or description						
UN 3164	Articles, pressurized, hydraulic containing non-flammable gas when meeting the requirements of Packing Instruction 208(a)	NO	NO	NO	NO	YES	N/A
UN 3164	Articles, pressurized, pneumatic containing non-flammable gas when meeting the requirements of Packing Instruction 208(a)	NO	NO	NO	NO	YES	N/A
UN 3373	Biological substance, Category B	NO	NO	NO	NO	YES	N/A
N/A	Dangerous Goods in Excepted Quantities (2.6)	NO	NO	NO	NO	YES	N/A
UN 3245	Genetically modified micro-organisms or Genetically modified organisms	NO	NO	NO	NO	YES	N/A
UN 2807	Magnetized material (not subject to an approval)	NO	NO	NO	NO	YES	N/A
UN 3091	Lithium metal batteries contained in equipment (including lithium alloy batteries) in compliance with Section II of Packing Instruction 970 with more than 4 cells or 2 batteries	NO	NO	NO	NO	YES ¹	YES
UN 3091	Lithium metal batteries contained in equipment (including lithium alloy batteries) in compliance with Section II of Packing Instruction 970 with no more than 4 cells or 2 batteries installed in equipment	NO	NO	NO	NO	NO	NO
UN 3091	Lithium metal batteries packed with equipment (including lithium alloy batteries) in compliance with Section II of Packing Instruction 969	NO	NO	NO	NO	YES ¹	YES
UN 3481	Lithium ion batteries contained in equipment (including lithium polymer batteries) in compliance with Section II of Packing Instruction 967 with more than 4 cells or 2 batteries	NO	NO	NO	NO	YES ¹	YES
UN 3481	Lithium ion batteries contained in equipment (including lithium polymer batteries) in compliance with Section II of Packing Instruction 967 with no more than 4 cells or 2 batteries installed in equipment	NO	NO	NO	NO	NO	NO
UN 3481	Lithium ion batteries packed with equipment (including lithium polymer batteries) in compliance with Section II of Packing Instruction 966	NO	NO	NO	NO	YES ¹	YES
UN 2909	Radioactive material, excepted package - articles manufactured from depleted uranium or natural thorium or natural uranium	NO	NO	NO	NO	YES	N/A
UN 2908	Radioactive material, excepted package - empty packaging	NO	NO	NO	NO	YES	N/A
UN 2911	Radioactive material, excepted package - instruments or articles	NO	NO	NO	NO	YES	N/A
UN 2910	Radioactive material, excepted package - limited quantity of material	NO	NO	NO	NO	YES	N/A

¹ The air waybill statement is as shown in the applicable packing instruction.

9.1.4 Acceptance of Freight Containers and Unit Load Devices

OPERATOR VARIATIONS: 4C-09, 7L-02, AD-03, JJ-09, JL-01, L7-09, LA-09, LU-09, M3-09, MP-07, PZ-09, UC-09, XL-09

9.1.4.1 An operator must not accept from a shipper a unit load device or a freight container containing

dangerous goods other than;

- (a) a freight container for radioactive material (see Appendix A);
- (b) ID 8000, Consumer commodities when prepared according to Packing Instruction Y963;
- (c) UN 1845, Carbon dioxide, solid (dry ice) provided that the unit load device does not contain dangerous goods other than UN 3373, **Biological substance**,

Category B or ID 8000, Consumer commodity or goods not subject to these Regulations;

- (d) UN 2807, Magnetized material;
- (e) UN 3373, Biological substance, Category B prepared according to Packing Instruction 650;
- (f) UN 3245, Genetically modified organisms, Genetically modified microorganisms prepared according to Packing Instruction 959;
- (g) Lithium ion or lithium metal cells and batteries meeting the provisions of Section II of Packing Instructions 966, 967, 969, 970;
- (h) UN 3164, Articles, pressurized, hydraulic or Articles, pressurized, pneumatic prepared according to Packing Instruction 208 (a);
- (i) Dangerous goods in excepted quantity prepared according to Subsection 2.6.8;
- (j) Radioactive material, excepted packages, prepared according to Subsection 10.5.8.

9.1.4.2 With regard to freight containers containing radioactive material, the operator must ensure that all four sides of the container are correctly labelled.

9.1.4.3 When an operator accepts a unit load device containing consumer commodities or dry ice as permitted by 9.1.4.1(b) or (c), the operator must attach an identification tag to the unit load device as required by 9.3.8.

9.1.5 Acceptance of Infectious Substances

STATE VARIATIONS: AUG-03, CAG-05/08, VUG-02

OPERATOR VARIATIONS: AM-06/10, AS-08, BR-14, CM-05, FX-04, HA-03, IP-03, LA-07, MS-03, OU-12, P5-05, TK-07

9.1.5.1 Routing. Whatever the mode used, transport must be made by the quickest possible routing. If transshipment is necessary, precautions must be taken to ensure special care, expeditious handling and monitoring of the substances in transit.

9.1.5.2 A live animal which has been intentionally infected and is known or suspected to contain an infectious substance must not be transported by air unless the infectious substance contained cannot be consigned by any other means. Infected animals may only be transported under terms and conditions approved by the appropriate national authority.

9.1.6 Special Responsibilities in Accepting Self-Reactive Substances of Division 4.1 and Organic Peroxides of Division 5.2

During the course of transport, packages or unit load devices containing self-reactive substances of Division 4.1 or organic peroxides of Division 5.2 must be protected from direct sunlight and all sources of heat and be placed in adequately ventilated areas.

9.1.7 Consumer Product Warnings

An article or package may bear a warning symbol or consumer hazard labelling. The article or substance contained in the package may not necessarily meet the criteria for classification shown in Section 3. Clarification should be obtained from the shipper, if required, before accepting the package as "Not Restricted".

Note:

Diamond-shaped GHS pictograms on packages may indicate the presence of dangerous goods. While some pictograms identify substances that only pose a hazard for supply and use, other GHS pictograms contain symbols that are largely equivalent to the symbols contained in the hazard labels used in transport and which may therefore be classified as dangerous goods. For more information, see Appendix B, Table B.4.A and http://www.unece.org/trans/danger/publi/ghs/ghs_welcome_e.html.

9.1.8 Consolidations

OPERATOR VARIATIONS: 6O-01, AI-04, BR-06, CA-01, CI-03, CZ-02, E9-02, GA-02, HX-05, IP-02, IR-02, JU-07, KE-01, KM-05, KQ-01, KZ-05, LY-01, ME-02, MH-05, MU-02, OU-14, OZ-02, PX-03, RJ-02, RH-05, SW-03, TK-03, UX-03, VN-12, WY-13

9.1.8.1 Definition

A consolidation is a consignment of multi-packages which has been originated by more than one person each of whom has made an agreement for carriage by air with another person other than a scheduled air carrier. Conditions applied to that agreement may or may not be the same as conditions applied by the scheduled air carrier for the same carriage.

9.1.8.2 Acceptance

Dangerous Goods are accepted in consolidations under the conditions described in 9.1.8.2.1 to 9.1.8.2.5.

9.1.8.2.1 Dangerous goods may be consolidated with goods not subject to these Regulations. Dangerous goods in consolidations are subject to the acceptance check described in 9.1.3. Any delays caused by discrepancies found during the check may result in delay to the complete consolidation.

9.1.8.2.2 Dangerous goods in consolidations must be identified, classified, packed, marked, labelled and documented in accordance with these Regulations and be free from any indication of damage or leakage.

9.1.8.2.3 Packages and overpacks containing dangerous goods must be offered to the operator separately from the goods in the consolidation that are not subject to these Regulations. Dangerous goods in consolidations are not acceptable in unit load devices, unless specifically permitted by these Regulations (see 9.1.4.1).

9.1.8.2.4 A Shipper's Declaration for Dangerous Goods is required for each component (house) consignment.

9.1.8.2.5 Consolidations containing any "Cargo Aircraft Only" dangerous goods must be shipped on Cargo Aircraft.

9.1.9 Conducting Safety Risk Assessments

Operators must include the transport of dangerous goods, including lithium batteries and cells as cargo, in the scope of their:

- safety management system (SMS) in accordance with ICAO Annex 19—Safety Management; and
- specific safety risk assessment on the transport of items in the cargo compartment in accordance with ICAO Annex 6—Operation of Aircraft, Part I—International Commercial Air Transport—Aeroplanes.

Notes:

- Guidance on implementation of an SMS is contained in the ICAO Safety Management Manual (SMM) (Doc 9859).
- Guidance on the conduct of a specific safety risk assessment on the transport of items in the cargo compartment is contained in the ICAO Cargo Compartment Operational Safety Manual (Doc 10102).

9.2 Storage

Editorial Note:

The provisions relating to the storage of radioactive material are set out in 10.9.2.

9.2.1 Storage of Organic Peroxides and Self-Reactive Substances

During the course of transport, packages or unit load devices containing self-reactive substances of Division 4.1 or organic peroxides of Division 5.2 must be protected from direct sunlight and all sources of heat and be placed in adequately ventilated areas.

9.2.2 Visibility of Marks and Labels

During the course of air transport, including storage, marks and labels required by these Regulations must not be covered or obscured by any part of or attachment to the packaging or any other label or mark.

9.3 Loading

9.3.1 Loading Restrictions on Flight Deck and for Passenger Aircraft

STATE VARIATIONS: JPG-10/12, USG-13/15

OPERATOR VARIATIONS: BR-16, IR-04, P3-01, SQ-01, SW-01

9.3.1.1 Dangerous goods must not be carried in an aircraft cabin occupied by passengers or on the flight

deck of an aircraft, except as permitted by 2.3.2 to 2.3.5 and 2.5.1 and for excepted packages of radioactive materials (see 10.5.8). Dangerous goods may be carried in a main deck cargo compartment of a passenger aircraft provided that the compartment meets all the certification requirements for a Class B or Class C aircraft cargo compartment. Dangerous goods bearing the "Cargo Aircraft Only" label must not be carried on a passenger aircraft.

9.3.1.2 Dangerous goods which do not meet the requirements of 9.3.1.1 may be approved for transport by the appropriate national authorities of the State of origin and the State of the operator, under specified conditions, in the main deck cargo compartments of passenger aircraft.

Note:

Cargo compartment classification is defined in Appendix A—Glossary.

9.3.1.3 For additional requirements concerning the loading of dangerous goods for carriage by helicopters, see 9.9.

9.3.2 Incompatible Dangerous Goods

STATE VARIATIONS: IRG-02, JPG-11

9.3.2.1 Segregation of Dangerous Goods

9.3.2.1.1 Packages containing dangerous goods, which might react dangerously with each other, must not be stowed on an aircraft next to each other or in a position that would allow interaction between them in the event of leakage. To maintain acceptable segregation between packages containing dangerous goods having different hazards, the segregation requirements shown in Table 9.3.A must be observed. The segregation requirements apply based on all hazard labels applied on the package, irrespective of whether the hazard is the primary or subsidiary hazard.

Note:

Incompatible dangerous goods should also be segregated during acceptance, handling and loading. Operators, freight forwarders and ground handling agents must also ensure that local government regulations applicable to the storage and handling of dangerous goods are complied with. These local government regulations may impose a greater requirement than that specified in Table 9.3.A.

TABLE 9.3.A
Segregation of Packages (9.3.2)

Hazard Label	1 excl. 1.4S	2.1	2.2, 2.3	3	4.1	4.2	4.3	5.1	5.2	8	9 see 9.3.2.1.3
1 excluding 1.4S	See 9.3.2.2.5.	x	x	x	x	x	x	x	x	x	x
2.1	x	—	—	—	—	—	—	—	—	—	x
2.2 2.3	x	—	—	—	—	—	—	—	—	—	—
3	x	—	—	—	—	—	—	x	—	—	x
4.1	x	—	—	—	—	—	—	—	—	—	x
4.2	x	—	—	—	—	—	—	x	—	—	—
4.3	x	—	—	—	—	—	—	—	—	x	—
5.1	x	—	—	x	—	x	—	—	—	—	x
5.2	x	—	—	—	—	—	—	—	—	—	—
8	x	—	—	—	—	—	x	—	—	—	—
9 see 9.3.2.1.3	x	x	—	x	x	—	—	x	—	—	—

Notes:

1. An "x" at the intersection of a row and a column indicates that packages containing these classes/divisions of dangerous goods must be segregated. A "—" at the intersection of a row and a column indicates that packages containing these classes/divisions of dangerous goods do not require segregation.
2. Divisions 1.4S and Classes 6, 7 and 9 (other than lithium batteries, see 9.3.2.1.3) are not included in Table 9.3.A as they do not require segregation from other classes of dangerous goods.

9.3.2.1.2 Packages containing dangerous goods with multiple hazards where the class or division of the primary and subsidiary hazards require segregation in accordance with Table 9.3.A need not be segregated from other packages bearing the same UN number, e.g. UN 3129, **Water reactive liquid, corrosive, n.o.s.**

9.3.2.1.3 Packages and overpacks containing UN 3480 - lithium ion batteries prepared in accordance with Section IA or Section IB of PI 965 and packages and overpacks containing UN 3090 - lithium metal batteries prepared in accordance with Section IA or Section IB of PI 968 must not be stowed on an aircraft next to, or in a position that would allow interaction in the event of damage/fire with packages or overpacks containing dangerous goods which bear a Class 1, other than Division 1.4S, Division 2.1, Class 3, Division 4.1 or Division 5.1 hazard label. To maintain acceptable segregation between packages and overpacks, the segregation requirements shown in Table 9.3.A must be observed. The segregation requirements apply based on all hazard labels applied on the package or overpack, irrespective of whether the hazard is the primary or subsidiary hazard.

9.3.2.1.4 UN 3528, **Engines, internal combustion, flammable liquid powered, Engines, fuel cell, flammable liquid powered, Machinery internal combustion, flammable liquid powered and Machinery, fuel cell, flammable liquid powered** need not be segregated from packages containing dangerous goods in Division 5.1.

9.3.2.2 Separation of Explosive Substances and Articles

9.3.2.2.1 Only explosives in Division 1.4, compatibility group S, are permitted to be transported on passenger aircraft. Only the following explosives may be transported on a cargo aircraft:

- Division 1.3 Compatibility groups C, G;
- Division 1.4 Compatibility groups B, C, D, E, G, S.

9.3.2.2.2 The extent to which explosives may be stowed together in an aircraft is determined by their "compatibility". Explosives are considered to be compatible if they can be stowed together without significantly increasing either the probability of an accident or, for a given quantity, the magnitude of the effects of such an accident.

9.3.2.2.3 Explosives in Compatibility Group S may be stowed with explosives in all compatibility groups.

9.3.2.2.4 Except as provided for in 9.3.2.2.5 explosives of different compatibility groups may be stowed together, whether or not they belong to the same division.

9.3.2.2.5 Explosives of Division 1.4B must not be loaded with other explosives except for Division 1.4S. When loaded on the same aircraft with explosives other than Division 1.4S, Division 1.4B explosives must be loaded into separate unit load devices and when stowed aboard the aircraft, the unit load devices must be separated by other cargo with a minimum separation distance of 2 m. When not loaded in a unit load device Division 1.4B and other explosives must be loaded into different, non-adjacent loading positions and separated by other cargo with a minimum separation distance of 2 m.

9.3.3 Handling and Loading of Packages Containing Liquid Dangerous Goods

OPERATOR VARIATIONS: CI-04, KE-07

During the course of transport, packages bearing the package orientation "This Way Up" label must be loaded, stowed and handled at all times in accordance with such a label. Single packagings with end closures, containing liquid dangerous goods must be loaded and stowed aboard an aircraft with such closures upwards, notwithstanding that such single packagings may also have side closures.

9.3.4 Loading of Cargo Aircraft

STATE VARIATIONS: JPG-12, USG-13/15

OPERATOR VARIATIONS: BR-01/14, IR-04, RU-01

9.3.4.1 Packages or overpacks of dangerous goods bearing the "Cargo Aircraft Only" label must be loaded for carriage by a cargo aircraft in accordance with one of the following provisions:

- (a) in a Class C aircraft cargo compartment; or
- (b) in a unit load device equipped with a fire detection/suppression system equivalent to that required by the certification requirements of a Class C aircraft cargo compartment as determined by the appropriate national authority (a ULD that is determined by the appropriate national authority to meet the Class C aircraft cargo compartment standards must include "Class C compartment" on the ULD tag); or
- (c) in such a manner that in the event of an emergency involving such packages or overpacks, a crew member or other authorized person can access those packages or overpacks and can handle and where size and weight permit, separate such packages from other cargo.
- (d) external carriage by helicopter; or
- (e) with the approval of the State of the operator, for helicopter operations, in the cabin (see **Supplement to the ICAO Technical Instructions (Doc 9284 AN/905 Supplement), Part S-7;2.4**)

Note:

Cargo compartment classification is defined in Appendix A—Glossary.

9.3.4.2 When requested, packages or overpacks bearing the "Cargo Aircraft Only" label should be made available to the crew for inspection prior to departure.

9.3.4.3 The requirements of 9.3.4.1(a), (b) and (c) and 9.3.4.2 do not apply to:

- UN 3529, Engine, internal combustion, flammable gas powered or Engine, fuel cell, flammable gas powered or Machinery, internal combustion, flammable gas powered or Machinery, fuel cell, flammable gas powered;
- flammable liquids (Class 3), Packing Group III, other than those with a subsidiary hazard of Class 8 or UN 3528, Engine, internal combustion, flammable liquid powered or Engine, fuel cell, flammable liquid powered or Machinery, internal

combustion, flammable liquid powered or Machinery, fuel cell, flammable liquid powered;

- toxic substances (Division 6.1) with no subsidiary hazard other than Class 3;
- infectious substances (Division 6.2);
- radioactive materials (Class 7);
- miscellaneous dangerous goods (Class 9).

Note:

When transporting goods in a non-pressurised cargo compartment, there will be a large pressure differential up to 75 kPa at cruise altitudes. Packages that are filled at normal atmospheric pressure may not be capable of withstanding this pressure differential. Operators should seek confirmation from the shipper that the package is suitable.

9.3.5 General Loading and Securing Requirements

OPERATOR VARIATION: CI-08

9.3.5.1 When dangerous goods subject to the requirements herein are loaded in an aircraft, the operator must protect the packages of dangerous goods from being damaged, including by the movement of baggage, mail, stores or other cargo. Particular attention must be paid to the handling of packages during their preparation for transport, the type of aircraft on which they are to be carried and the method required to load that aircraft, so that accidental damage is not caused through dragging or mishandling of the packages.

9.3.5.2 The operator must secure dangerous goods in the aircraft in a manner that will prevent any movement. For packages or overpacks containing radioactive materials, the securing must be adequate to ensure that the separation requirements of 10.9.3.2, 10.9.3.6 and 10.9.3.7 are met at all times.

9.3.6 Damaged Packages of Dangerous Goods

STATE VARIATION: VEG-02

9.3.6.1 Operators must ensure that a package or overpack is not loaded onto an aircraft or into a unit load device unless the package or overpack has been inspected immediately prior to loading and found free from visible leaks or damage.

9.3.6.2 Before loading on an aircraft, unit load devices must be inspected and found free from any evidence of leakage from or damage to any dangerous goods contained therein.

9.3.6.3 Any package, which appears to be damaged or leaking, must be removed from the aircraft and safe disposal arranged. In the case of leakage, the operator must ensure the remainder of the consignment is undamaged and that no other package, baggage or cargo has been contaminated. See Subsection 9.4 for damage to Class 6 and Subsection 10.9.4 for Class 7 packages.

△ 9.3.7 Replacement of Marks and Labels

When an operator discovers that any of the marks required by 2.6.7, 7.1.4.2, 7.1.5.3 or 7.1.5.5 or labels have become lost, detached or illegible, the operator must replace them in accordance with the information provided on the "Shipper's Declaration for Dangerous Goods" or other transport document, such as an air waybill, when applicable. This requirement does not apply where the marks and labels are found to be missing or illegible at time of acceptance.

9.3.8 Identification of Unit Load Devices Containing Dangerous Goods

STATE VARIATION: JPG-09

9.3.8.1 Each unit load device containing dangerous goods, which require a hazard label, must display an identification tag on its exterior indicating that dangerous goods are contained within the unit load device.

9.3.8.2 The identification tag must:

- have a border of prominent red hatchings on both sides and be visible at all times;
- have minimum dimensions of 148 mm × 210 mm; and
- be legibly marked with the primary and subsidiary hazard class(es) or division(s) numbers of such dangerous goods.

9.3.8.3 The identification tag must be removed from the unit load device immediately after the dangerous goods have been unloaded.

9.3.8.4 When placed inside a protective tag holder, the information on the identification tag must be legible and visible.

9.3.8.5 If the unit load device contains packages bearing the "Cargo Aircraft Only" label, the identification tag must indicate that the unit load device can only be loaded on a cargo aircraft.

9.3.9 Loading of Magnetized Materials

OPERATOR VARIATIONS: JL-06, VN-11

Magnetized materials must be loaded so that headings of aircraft compasses are maintained within the tolerances prescribed by the applicable aircraft airworthiness requirements and where practical, in locations minimizing possible effects on compasses. Multiple packages may produce a cumulative effect. For magnetized material transported under the conditions of an approval described in Packing Instruction 953, loading must be in accordance with conditions specified in the authorizing approval.

Note:

Masses of ferro-magnetic metals such as automobiles, automobile parts, metal fencing, piping and metal construction material, even if not meeting the definition of magnetized materials may affect aircraft compasses, as may packages or items which individually do not meet the definition of magnetized material but cumulatively may have a magnetic field strength of a magnetized material.

9.3.10 Loading of Carbon Dioxide, Solid (Dry Ice)

OPERATOR VARIATIONS: 2K-07, 3K-05, AI-05, AS-11, AV-07, GF-11, GU-07, IG-02, JU-08, KC-03, LR-07, QT-07, SV-05, TA-07, UA-03, WC-07, XQ-04

9.3.10.1 Carbon dioxide, solid (dry ice) shipped by itself or used as a refrigerant for other commodities, may be carried provided that the operator has made suitable arrangements dependent on the aircraft type, the aircraft ventilation rates, the method of packing and stowing, whether or not animals will be carried on the same flight and other factors. The operator must ensure that ground staff are informed that Carbon dioxide, solid (dry ice) is being loaded or is on board the aircraft.

9.3.10.2 Where dry ice is contained in a unit load device prepared by a single shipper in accordance with Packing Instruction 954 and the operator after acceptance adds additional dry ice then the operator must ensure that the information provided to the pilot-in-command reflects that revised quantity of dry ice.

Notes:

- For arrangements between the shipper and operator, see Packing Instruction 954.
- Refer to the relevant airline's loading procedures for Carbon dioxide, solid (dry ice) limitations.

9.3.10.3 As required by 2.3.4.5, crew and passenger checked baggage containing dry ice must be marked to identify that the baggage contains dry ice and shows the quantity of dry ice or identifies that there is 2.5 kg of dry ice or less. To assist with the handling of passenger and crew checked baggage containing dry ice. Figure 9.3.B shows an example of a baggage tag, which may be used by operators to identify such items of checked baggage.

FIGURE 9.3.B
Example Dry Ice Baggage Tag (9.3.10.3)



9.3.11 Loading of Cryogenic Liquids

Packages containing liquefied refrigerated gases in open and closed cryogenic receptacles may be carried provided that the operator has made suitable arrangements dependant on the aircraft type, loading of other temperature-sensitive cargo and whether or not animals will be carried on the same flight. The operator should ensure that ground staff are informed that packages containing cryogenic liquids are being loaded or are on board the aircraft and that appropriate precautions should be taken to ensure that after the cargo door is opened any gas build up is allowed to vent before loading personnel enter the cargo compartment.

9.3.12 Loading of Expandable Polymeric Beads and Plastics Moulding Compound (UN 2211 and UN 3314)

OPERATOR VARIATION: AS-06

A total of not more than 100 kg net weight of expandable polymeric beads (or granules) or plastics moulding compound, referenced to Packing Instruction 957, may be carried in any inaccessible cargo compartment on any aircraft.

9.3.13 Loading of Live Animals with Dangerous Goods

9.3.13.1 Live animals should not be loaded in close proximity of cryogenic liquids or Carbon dioxide, solid (dry ice). As the vapours emitted by Carbon dioxide, solid (dry ice) are heavier than air, they concentrate on the lower level of the hold. Therefore, live animals should be stowed above packages containing Carbon dioxide, solid (dry ice).

Note:

In certain circumstances carbon dioxide, solid (dry ice) may be packaged with live animals as a coolant, e.g. bees. All other requirements for the transport of carbon dioxide, solid (dry ice) must be met.

9.3.13.2 Category II-Yellow and Category III-Yellow packages, overpacks and freight containers must be separated from live animals by a distance of 0.5 m or more for journeys of 24 hours or less and by a distance of 1.0 m or more for journeys of more than 24 hours.

9.3.14 Loading of Wheelchairs or other Battery-Powered Mobility Aids as Checked Baggage

OPERATOR VARIATIONS: 2K-01, AR-01, AV-01, BT-05, G3-08, GS-08, GU-01, IP-05, JP-04, JU-10, LR-01, RO-07, SV-10, TA-01, TS-04, UU-04, WC-01

9.3.14.1 Wheelchairs or other similar mobility aids with non-spillable wet batteries which comply with Special Provision A67 or nickel-metal hydride batteries which comply with Special Provision A199 or dry batteries which comply with Special Provision A123, being carried with the approval of the operator as checked baggage, must be loaded in accordance with 2.3.2.2.

9.3.14.2 Wheelchairs or other similar mobility aids with spillable batteries, being carried with the approval of the operator as checked baggage, must be loaded in accordance with 2.3.2.3.

9.3.14.3 Wheelchairs or other similar mobility aids with lithium-ion batteries being carried with the approval of the operator, must be loaded in accordance with 2.3.2.4.

9.3.14.4 The pilot-in-command must be informed of:

- the location of mobility aids with installed batteries;
- the location of removed batteries; and
- the location of spare batteries, either in the cargo compartment, or for lithium ion batteries in the passenger cabin.

9.3.14.5 It is recommended that passengers make advance arrangements with each operator; also that batteries which are spillable should be fitted with spill-resistant vent caps when feasible.

9.3.14.6 To assist the handling of wheelchairs and mobility aids with batteries, Figure 9.3.C shows an example of a label which may be used to assist in identifying whether or not a wheelchair has had the battery removed. The label is in two parts; Part A remains with the wheelchair and indicates whether or not the battery has been removed. In the particular case where the battery is separated from the wheelchair, Part B may be used to assist in identifying the battery and also in reconciling the battery and its wheelchair.

FIGURE 9.3.C
Battery-powered Wheelchair and Mobility Aid Label (9.3.14.6)

	
 separated attached	 separated
WHEELCHAIR	WHEELCHAIR BATTERY
M.	M.
Flight(s)	Flight(s)
Destination	Destination

9

9.3
to
9.4

9.3.15 Handling of Self-Reactive Substances and Organic Peroxides

Packages or unit load devices containing packages of self-reactive substances of Division 4.1 and/or organic peroxides of Division 5.2 must be protected from direct sunlight and all sources of heat and be placed in adequately ventilated areas during the course of loading.

9.3.16 Handling and Loading of Intermediate Bulk Containers (IBC)

During handling and loading of intermediate bulk containers (IBC), account must be taken of the IBC marks specified in Figure 6.8.E.

9.4 Inspection

9.4.1 Inspection for Damage or Leakage

Packages or overpacks containing dangerous goods must be inspected for signs of damage or leakage upon unloading from the aircraft or unit load device. If evidence of damage or leakage is found, the position where the dangerous goods or unit load device was stowed on the

aircraft must be inspected for damage or contamination and any hazardous contamination removed. The special responsibilities of operators regarding infectious substances are detailed in 9.4.2 and for radioactive materials in 10.9.4.

9.4.2 Infectious Substances

If any person responsible for the carriage of packages containing infectious substances becomes aware of damage to or leakage from such a package, that person must:

- avoid handling the package or keep handling to a minimum;
- inspect adjacent packages for contamination and put aside any that may have been contaminated;
- inform the appropriate public health authority or veterinary authority and provide information on any other countries of transit where persons may have been exposed to danger; and
- notify the shipper and/or the consignee.

Editorial Note:

The provisions relating to the inspection of radioactive material have been moved to 10.9.4.

9.4.3 Contaminated Cargo or Baggage Handling

If an operator becomes aware that baggage or cargo not identified as containing dangerous goods has been contaminated and it is suspected that dangerous goods may be the cause of the contamination, the operator must take reasonable steps to identify the nature and source of contamination before proceeding with the loading of the contaminated baggage or cargo. If the contaminating substance is found or suspected to be a substance classified as dangerous goods by these Regulations, the operator must isolate the baggage or cargo and take appropriate steps to nullify any identified hazard before being transported further by air.

9.4.4 Damaged or Leaking Packages

If it is evident that a package is damaged or leaking, or if it is suspected that the package may have leaked or been damaged, access to the package should be restricted. Local safety and emergency procedures should then be followed.

When necessary, additional steps for the protection of persons, property and the environment, in accordance with the provisions established by the relevant competent authority (e.g. occupational health and safety authority, environmental agency, etc.), should be taken to overcome and minimize the consequences of such leakage or damage. The presence of GHS pictograms on a package which indicates that contents may pose a risk to persons or the environment may need to be taken into account even though the contents are not classified as dangerous goods.

9.5 Provision of Information

9.5.1 Pilot-in-Command

9.5.1.1 Notification to Captain

STATE VARIATIONS: AEG-05/07, KWG-05, OMG-08, USG-12/13/15, VCG-08, YEG-08, ZAG-04

9.5.1.1.1 As early as practicable prior to departure of the aircraft, but in no case later than when the aircraft moves under its own power, the operator of an aircraft in which dangerous goods are to be carried must:

- (a) provide the pilot-in-command with accurate and legible written or printed information concerning dangerous goods that are to be carried as cargo; and
- (b) provide personnel with responsibilities for operational control of the aircraft (e.g. the flight operations officer, flight dispatcher, or designated ground personnel responsible for flight operations) with the same information that is required to be provided to the pilot-in-command (e.g. a copy of the written information provided to the pilot-in-command). Each operator must specify the personnel (job title or function) to be provided this information in their operations manual and/or other appropriate manuals.

Notes:

1. This includes information about dangerous goods loaded at a previous departure point and which are to be carried on the subsequent flight.
2. Information required under 9.5.1.1(b) should be readily available to the operator's personnel whose responsibilities most closely align with the duties of the flight operations officer/flight dispatcher described in ICAO Annex 6, Part I, Chapter 4.6 (see Flight Operations Officer and also definition in Appendix A). These personnel are intended to provide the information required by 9.6.3 to facilitate emergency response.

9.5.1.1.2 For helicopter operations, with the approval of the appropriate national authority of the State of the operator, the information to the pilot-in-command may be abbreviated or be by other means (e.g. radio communication, as part of the working flight documentation such as a journey log or operational flight plan) where circumstances make it impractical to produce written or printed information or on a dedicated form (see Supplement to the ICAO Technical Instructions (Doc 9284 AN/905 Supplement), Part S-7; 4.8)

9.5.1.1.3 This written information to the pilot-in-command must include the following:

- (a) the date of the flight;
- (b) the Air Waybill number (when issued);
- △ (c) the proper shipping name (see 8.1.3) (the technical, chemical group name(s) shown on the Shipper's Declaration is not required) and UN number or ID number as listed in these Regulations. When chemical oxygen generators contained in Protective Breathing Equipment (PBE) are being transported under Special Provision A144, the proper shipping name of "Oxygen generator, chemical" must be supplemented with the statement "Air crew Protective Breathing Equipment (smoke hood) in accordance with Special Provision A144";
- (d) the class or division and subsidiary hazard(s) corresponding to label(s) applied (see also 8.1.6.9.1, Steps 4 and 5), by numerals and in the case of Class 1, the compatibility group;
- (e) the Packing Group as shown on the Shipper's Declaration;
- (f) (for non-radioactive material) the number of packages, the net quantity, or gross weight if applicable, including the units of measurement, of each package, except that this does not apply to dangerous goods where the net quantity or gross weight is not required on the Shipper's Declaration for Dangerous Goods (see 8.1.6.9.2, Step 6), or, when applicable, alternative written documentation and their exact loading location.
 1. for a consignment consisting of multiple packages containing dangerous goods bearing the same proper shipping name and UN number or ID number, only the total quantity and an indication of the largest and smallest package at each loading location need to be provided. For consumer commodities, the information provided may be either the gross weight of each package

or the average gross weight of the packages as shown on the Shipper's Declaration;

2. the number of overpacks and an indication of which dangerous goods packages are contained in each overpack;
 3. the number of all packed in one packages and an indication of which dangerous goods are contained in the package(s).
- (g) (for radioactive material) the number of packages, overpacks, or freight containers, their category, their transport index, if applicable and their exact loading location;
- (h) whether the package must be carried on cargo aircraft only;
- (i) the airport at which the package(s) is to be unloaded; and
- (j) (where applicable) an indication that the dangerous goods are being carried under a State exemption.

9.5.1.1.3.1 When dangerous goods packages are contained in an overpack, the information should show the overpack information immediately following the entries within it.

9.5.1.1.3.2 When different dangerous goods are contained in one outer packaging, the piece count may be left blank for each entry and shown only for the outer packaging. The information should show the all packed in one information immediately following the entries within it.

9.5.1.1.3.3 Where the operator intends to make it possible for the pilot-in-command to provide a telephone number instead of the details about the dangerous goods on board the aircraft as specified in 9.5.1.3, the telephone number from where a copy of the information to the pilot-in-command can be obtained during the flight must be provided in addition to the information specified above in 9.5.1.1.3.

9.5.1.1.3.4 The dangerous goods listed in Table 9.5.A need not appear on the information provided to the pilot-in-command.

9.5.1.1.4 For UN 1845, Carbon dioxide, solid (dry ice), the information required by 9.5.1.1.3 may be replaced by the UN number, proper shipping name, class, total quantity in each cargo compartment on the aircraft and the aerodrome at which the package(s) is to be unloaded need to be provided.

9.5.1.1.5 For UN 3480 (Lithium ion batteries) and UN 3090 (lithium metal batteries), the information required by 9.5.1.1.3 may be replaced by the UN number, proper shipping name, class, total quantity at each loading location, the aerodrome at which the package(s) is to be unloaded and whether the package must be carried on a cargo aircraft only. UN 3480 (Lithium ion batteries) and UN 3090 (lithium metal batteries) carried under a State exemption must meet all of the requirements in 9.5.1.1.3.

9.5.1.1.6 This information to the pilot-in-command should be presented on a dedicated form and should not be by means of Air Waybills, "Shipper's Declaration for Dangerous Goods", invoices, etc. The pilot-in-command must indicate on a copy of the information to pilot-in-command, or in some other way, that the information has been received.

9.5.1.1.7 The information to the pilot-in-command must also include signed confirmation, or some other indication, from the person responsible for loading the aircraft, that there was no evidence of any damage to or leakage from the packages or any leakage from the unit load devices loaded on the aircraft.

9.5.1.1.8 The information to the pilot-in-command must be readily available to the pilot-in-command during flight.

9.5.1.1.9 A legible copy of the information to the pilot-in-command must be retained on the ground. This copy must have an indication on it or with it that the pilot-in-command has received the information. A copy, or the information contained in the notice to the pilot-in-command, must be readily accessible to the flight operations officer, flight dispatcher, or designated ground personnel responsible for flight operations until after the arrival of the flight.

9.5.1.1.10 In addition to the languages, which may be required by the State of the operator, English should be used for the information to the pilot-in-command.

9.5.1.1.11 In the event of the information to the pilot-in-command being of such a size as to make in-flight radiotelephony transmission impracticable in an emergency situation, a summary of the information should also be provided by the operator, containing at least the quantities and class or division of dangerous goods in each cargo compartment.

TABLE 9.5.A
Dangerous Goods Not Required to Appear on the Information to Pilot-in-Command (9.5.1.1.3.4)

UN Number	Proper shipping name and/or description	Reference
UN 3164	Articles, pressurized, hydraulic containing non-flammable gas when meeting the requirements of Packing Instruction 208 (a)	Packing Instruction 208 (a)
UN 3164	Articles, pressurized, pneumatic containing non-flammable gas when meeting the requirements of Packing Instruction 208 (a)	Packing Instruction 208 (a)
UN 3373	Biological substance, Category B	Packing Instruction 650
n/a	Dangerous goods in excepted quantities	2.6.1
UN 3245	Genetically modified micro-organisms or Genetically modified organisms	Packing Instruction 959
UN 3481	Lithium ion batteries contained in equipment (including lithium polymer batteries) when meeting the requirements of Section II of Packing Instruction 967	Packing Instruction 967 Section II
UN 3481	Lithium ion batteries packed with equipment (including lithium polymer batteries) when meeting the requirements of Section II of Packing Instruction 966	Packing Instruction 966 Section II
UN 3091	Lithium metal batteries contained in equipment (including lithium alloy batteries) when meeting the requirements of Section II of Packing Instruction 970	Packing Instruction 970 Section II
UN 3091	Lithium metal batteries packed with equipment (including lithium alloy batteries) when meeting the requirements of Section II of Packing Instruction 969	Packing Instruction 969 Section II
UN 2807	Magnetized material with field strength causing a compass deflection of not more than 2° at a distance of 4.6 m. <i>Note:</i> <i>Magnetized Material transported under an approval may be required to appear on the NOTOC.</i>	Packing Instruction 953
UN 2909	Radioactive material, excepted package—articles manufactured from depleted uranium or natural thorium or natural uranium	10.5.8
UN 2908	Radioactive material, excepted package—empty packaging	10.5.8
UN 2911	Radioactive material, excepted package—instruments or articles	10.5.8
UN 2910	Radioactive material, excepted package—limited quantity of material	10.5.8

9.5.1.2 Emergency Response Information

STATE VARIATION: VEG-03

The operator must ensure that for consignments requiring a Shipper's Declaration for Dangerous Goods, appropriate information is immediately available at all times for use in emergency response to accidents and incidents involving dangerous goods in air transport. The information must be available to the pilot-in-command and can be provided by:

- The Emergency Response Guidance for Aircraft Incidents Involving Dangerous Goods (ICAO Doc. 9481-AN/928); or
- any other document, which provides appropriate information concerning dangerous goods on board.

Note:

Subsection 4.2—List of Dangerous Goods contains the applicable Emergency Response Drill Code (see Column N) assigned to each dangerous goods entry in the ICAO document "Emergency Response Guidance for Aircraft Incidents Involving Dangerous Goods" (ICAO Doc. 9481-AN/928).

9.5.1.3 Information by the Pilot-in-Command in Case of In-Flight Emergency

STATE VARIATIONS: MYG-04, VUG-03

If an in-flight emergency occurs, the pilot-in-command must, as soon as the situation permits, inform the appropriate air traffic services unit, for the information of airport authorities, of any dangerous goods carried as cargo on board an aircraft. Wherever possible, this information should include the proper shipping name and/or UN/ID number, the class/division and for Class 1, the compatibility group, any identified subsidiary hazard(s), the quantity and the location on board the aircraft or, a telephone number where a copy of the information to the pilot-in-command can be obtained. When it is not considered possible to include all the information, those parts thought most relevant in the circumstances or a summary of the quantities and class or division of dangerous goods in each cargo compartment should be given.

9.5.2 Provision of Information to Passengers

With the aim of preventing dangerous goods which a passenger is not permitted to have from being taken aboard an aircraft in excess baggage consigned as

cargo, any organization or enterprise accepting excess baggage consigned as cargo should seek confirmation from the passenger, or a person acting on behalf of the passenger, that the excess baggage does not contain dangerous goods that are not permitted and seek further confirmation about the contents of any item where there are suspicions that it may contain dangerous goods that are not permitted.

9.5.3 Provision of Information at Cargo Acceptance Areas

An operator or the operator's handling agent must ensure that sufficient notices, prominently displayed, are provided at visible location(s) at cargo acceptance points, giving information about the transport of dangerous goods to alert shippers/agents about any dangerous goods that may be contained in their cargo consignment(s). These notices must include visual examples of dangerous goods, including batteries.

9.6 Reporting

STATE VARIATIONS: AEG-09, AUG-04, BRG-11, CAG-12, FRG-05, GBG-04, KPG-03, KWG-05, MYG-05, USG-13, VUG-04

9.6.1 Dangerous Goods Accidents and Incidents

An operator must report dangerous goods accidents or incidents to the appropriate authorities of the State of the operator and the State in which the accident or incident occurred, in accordance with the reporting requirements of those appropriate authorities.

Notes:

1. *This includes incidents involving dangerous goods that are not subject to all or part of these Regulations through the application of an exception or of a special provision (for example, an incident involving the short circuiting of a dry cell battery that is required to meet short circuit prevention conditions in a special provision of 4.4).*
2. *An example of an accident and incident reporting form—Dangerous Goods Occurrence Report is included at the back of the Regulations.*
3. *Entities other than operators who are in possession of dangerous goods at the time a dangerous goods accident or incident occurs or at the time a dangerous goods incident is discovered to have occurred should follow the reporting requirements of 9.6.1. Entities other than operators who discover undeclared or misdeclared dangerous goods should follow the reporting requirements of 9.6.2. These entities may include, but are not limited to, freight forwarders, customs authorities and security screening providers.*

9.6.2 Undeclared or Mis-Declared Dangerous Goods

An operator must report any occasion when undeclared or mis-declared dangerous goods are discovered in cargo or mail. Such a report must be made to the appropriate authorities of the State of the operator and the State in which this occurred. An operator must also report any occasion when dangerous goods not permitted under Subsection 2.3 are discovered by the operator, or the operator is advised by the entity that discovers the dangerous goods, either in the baggage or on the person of passengers or crew members. Such a report must be made to the appropriate authority of the State in which this occurred.

9.6.3 Information by Operator in Case of an Aircraft Accident or Incident

9.6.3.1 In the event of:

- (a) an aircraft accident; or
- (b) serious incident, where dangerous goods carried as cargo may be involved,

the operator of the aircraft carrying dangerous goods as cargo must provide information, without delay, to emergency services responding to the accident or serious incident about the dangerous goods on board, as shown on the information to the pilot-in-command. As soon as possible, the operator must also provide this information to the appropriate authorities of the State of the Operator and the State in which the accident or serious incident occurred.

9.6.3.2 In the event of an aircraft incident, the operator of an aircraft carrying dangerous goods as cargo must, if requested to do so, provide information, without delay, to emergency services responding to the incident and to the appropriate authority of the State in which the incident occurred about the dangerous goods on board, as shown on the information to the pilot-in-command.

9.6.3.3 Operators must address the provisions of 9.6.3.1 and 9.6.3.2 in appropriate manuals and accident contingency plans.

Note:

The terms "accident", "serious incident" and "incident" are defined in ICAO Annex 13.

9.6.4 Reporting of Dangerous Goods Occurrences

An operator must report to the appropriate authority of the State of the operator any occasion when:

- (a) dangerous goods are discovered to have been carried when not loaded, segregated, separated or secured in accordance with 9.2 or 9.3; or
- (b) dangerous goods are discovered to have been carried without information having been provided to the Pilot-in-Command in accordance with 9.5.1.1.

9.6.5 Dangerous Goods Occurrence Report

Operators must report:

- dangerous goods accidents and incidents to the appropriate authority of the State of the operator and the State in which the accident or incident occurred in accordance with 9.6.1;
- occasions of undeclared or mis-declared dangerous goods to the appropriate authority of the State of the operator and the State in which this occurred in accordance with 9.6.2;
- other occurrences in accordance with 9.6.4.

An example of a standard form which is in use in many parts of the world and which may be used where the reporting format has not been specified by the appropriate authority is included at the back of the Regulations. In addition, it is recommended that this format be used when reporting incidents to another operator.

Note:

Individual States may require other reporting formats and carriers must ensure that they follow local national protocols as appropriate.

9.7 Training

An operator must ensure training is provided in accordance with the detailed requirements of Subsection 1.5 to all relevant employees including those of agencies employed to act on their behalf, to enable them to carry out the functions for which they are responsible with regard to the transport of dangerous goods, passengers and their baggage, cargo and mail.

9.8 Retention of Documents

STATE VARIATIONS: BRG-04/07, USG-01/13

9.8.1 The operator must ensure that at least one copy of the documents or information, appropriate to the transport by air of a dangerous goods consignment, is retained for a minimum period of three months after the flight on which the dangerous goods were transported. As a minimum, the documents which must be retained are the Shipper's Declaration for Dangerous Goods and other applicable transport documents, the acceptance checklist (when this is in a form which requires completion), the identification of the person who performed the acceptance check and the written information to the pilot-in-command. These documents or the information must be made available to the appropriate national authority upon request.

Note:

Where the documents or information are kept electronically or in a computer system, they should be capable of being reproduced in a printed manner.

9.8.2 For each package or overpack containing dangerous goods or freight container containing radioactive material or unit load device containing dangerous goods as described in 9.1.4 that was not accepted by an operator, due to an error or omission by the shipper in packaging, labelling, marking or documentation, a copy of the documentation as well as the checklist (when this is in a form which requires completion), and the identification of the person who performed the acceptance check should be retained for a minimum period of three months after the completion of the acceptance checklist.

Note:

Where the documents or information are kept electronically or in a computer system, they should be capable of being reproduced in a printed manner.

9.9 Helicopter Operations

9.9.1 Due to the differences in the type of operations carried out by helicopters compared with aeroplanes, there may be circumstances when the full provisions of these Regulations are not appropriate or necessary, due to the operations involving un-manned sites, remote locations, mountainous areas or construction sites etc. In such circumstances and when appropriate, the State of the operator may grant an approval in order to permit the carriage of dangerous goods without all of the normal requirements of these Regulations being fulfilled. When States other than the State of the operator have lodged a variation that they require prior approval of such operations, approval must also be obtained from the States of origin and destination, as appropriate.

9.9.2 When loading dangerous goods for open external carriage by a helicopter, consideration should also be given to the type of packaging used and to the protection of those packagings, where necessary, from the effects of airflow and weather (e.g. by damage from rain or snow), in addition to the general loading provisions of 9.3.

9.9.3 When dangerous goods are carried suspended from a helicopter, the operator must ensure that consideration is given to the dangers of static discharge upon landing or release of the load.

9.9.4 When helicopters are carrying passengers, in accordance with the Supplement to the ICAO Technical Instructions (Doc. 9284 AN/905 Supplement), Part S-7; 2.2.4, the State of the operator may grant an approval to permit the carriage of dangerous goods either:

- (a) in the cabin, when those dangerous goods are associated with and accompanied by the passengers; or
- (b) in cargo compartments that do not meet the requirements of 9.3.1.1.

Note:

The requirements in this subsection are in addition to the other provisions of these Regulations that apply to all operators (e.g. 1.4 and 1.5).